

LEGAL METHODS QUESTIONS AND ANSWERS

QUESTION ONE

Of recent, there has been an attempt to legislate on the use of polythene bags in Uganda. The relevant ministry is saying that its injurious to the environment where as the other stake holders in the matter including traders and supermarket owners say that there is no law stopping them from using polythene bags. The ministry now wants to solve this confusion by having a legislation enacted to this matter.

In a detailed legal memorandum, as an LLB student intern in the minister's office explain the process of making laws in Uganda. 25 marks

SOLUTIONS

In Uganda, the Law-making process is provided for by the Constitution of the Republic of Uganda 1995 (AS Amended) under Articles 77, 78 which provide for the establishment, composition and functions of parliament and Article 79 provides for the functions of parliament and clause (1) is to the effect that subject to the provisions of this constitution, parliament shall have power to make laws on any matter for the peace, order, development and good governance of Uganda. The power to make laws is in form of Bills under Article 91 (1) of the Constitution of the Republic of Uganda 1995. The law applicable as regards the law-making process in Uganda is the Uganda Constitution of 1995 and the Rules of Procedure Under the Acts of Parliament and the Procedure is as follows:

1. Under Article 91 of the Constitution of the Republic of Uganda the bill is drafted and presented by a Parliamentary Draftsman or Private Member authorized to do so to the Parliament.
2. Under rule 115 of the Rules of Procedure of parliament, the bill's short title is then read for the first time and is then referred to a committee to research, analyze and scrutinize the bill.
3. Rule 130 of the Rules of Procedure of Parliament, the second reading is conducted upon the submission of the Committee's report and the bill is debated upon by the members of Parliament.
4. Rule 137 of the Rules of Procedure of Parliament, the third reading is conducted and the bill is voted on. The bill shall be passed if at least two-thirds of members of Parliament support it.
5. Under article 91(2) of the Constitution of the Republic of Uganda, the bill

passed by parliament shall, as soon as possible, be presented to the president for assent.

The President is as soon as possible required within 30 days after the bill is presented to him or her to assent or return the bill for reconsideration of the bill or a particular provision of it to be re-considered by parliament or notify the Speaker in writing that he



or she refuses to assent to the bill. This is provided for under Article 91 (3) of the Constitution of the Republic of Uganda, 1995 (as amended).

The Parliament is required to consider the President's reply and if passed again, it is presented for the second time to the President for assent. This is provided for under Article 91(4) of the Constitution of Uganda.

Where the President returns the same bill, the bill is passed by two thirds of the Parliament, the Speaker lays a copy before the Parliament and the bill becomes law without the assent of the President. This is provided for under Article 91(5) of the Constitution of Uganda of the Republic of Uganda, 1995 (as amended).

A bill passed by the Parliament and assented by the President or which otherwise becomes law under this Article is an Act of Parliament and is published in the Gazette. This is provided for under Article 91 (8) of the Constitution of the Republic of Uganda. Then an act of parliament becomes law of Uganda and implementation of the law starts on the commencement date as published in the Gazette.

The Gazette is the official government publication

QUESTION TWO

"The doctrine of precedent has completely lost its relevance in the study and practice of law in Uganda as all aspects are properly provided for in the statutes. All reasoning has to be rooted in a provision of the law and nothing more than that" per LLB1 student. With clear illustrations and authorities, do you agree with this assessment?

SOLUTION

The doctrine of precedent is a decision made by courts which contains an underlying principle that has a force of law which subsequently either binds or persuasive which subsequently either binds or is persuasive to the future courts.

A precedent refers to a legal case that establishes a legal principle or rule which is being used by courts when deciding later cases with similar issues or facts.

Different categories of precedents

Original precedent. If a point of law has never been decided before, then whatever the judge decides forms a new precedent for later cases to follow.

Declaratory precedent. This is a precedent where the judge applies existing rules of law without extending them.

Distinguishing

Distinguishing is the method which can be used by a judge to avoid following a

past decision which he would otherwise have to follow. It means the judge finds the material facts of the case he is deciding are sufficiently different for him to draw a distinction between present case and the previous precedent. **See the case of Balfour V Balfour and Merrit V Merrit.**



Overriding. This is where a court in a later case states that the legal rule in an earlier case is wrong. Overriding can occur when a higher court overrules a decision made in an earlier case by a lower court, for example, the supreme court overruling a decision of the court of appeal.

This is where a court higher up in hierarchy overturns the decision of a lower court on appeal in the same case. For example, the court of appeal may disagree with the legal ruling of the high court and come to a different view of the law. In this situation, it reverses the decision made by the high court.

Types of precedents

Binding precedents. This is a precedent from an earlier case which must be followed even if the judge in the latter case does not agree with the legal reasoning. A binding precedent is only created when the facts of the second case are sufficiently similar to the original and the decision was made by a court which is senior to it or some cases the same level as the court hearing the latter case.

This precedent finds expression in the doctrine of stare decisis. *This is a latin phrase*

which literally means to stand by what has been decided before. Its sometimes used to describe the doctrine of precedent.

Stare decisis means that when a court decides in a case then any court which are equal or lower status to that court must follow the previous decision if the case before them is similar to that of the earlier case. Therefore, once the court has decided a matter, other inferior courts are bound to follow that decision whether they like it or not. Article 132(4) of the Constitution of the Republic of Uganda, 1995 is to the effect that “The supreme court may, while treating its own previous decisions as normally binding, depart from a previous decision when it appears to it right to do so and all other courts shall be bound to follow the decisions of the supreme court on the question of law. In Attorney General V Uganda Law Society, it was held that under the doctrine of stare decisis the court of law is bound to adhere to its previous decision except in circumstances where the previous decision is distinguishable or was overruled by a higher court of appeal or was arrived per incuriam i.e without taking into accounts a law in force or a binding precedent.

Ratio decidendi. The reason or the rationale for the decision. The ratio decidendi is the

point in a case that determines the judgement or the principle that the case

establishes. In other words, Ratio decidendi is the legal rule derived from and consistent with those parts of legal reasoning within a judgement on which the outcome of the case depends.



Persuasive precedent.

These are not binding on the court. However, a judge may consider such a precedent and decide that it is a correct principle to follow their words, he is persuaded that he should follow it. They can even come from courts lower in the hierarchy. For example, in **R V R**, the House of Lords followed the same reasoning as the court of appeal in deciding that a man could be guilty of raping his wife.

Obiter dicta.

Other things said by the way. These comments do not form part of the ration (reasoning) and are therefore not part of the precedent. For instance, sometimes a judge will speculate what his decision would have been if the material facts had been different. Obiter dicta may help to persuade a later judge towards a particular view in the law.

Operation of the doctrine of precedents

The doctrine of precedents operates at two levels i.e. **Vertical and Horizontal**.

Vertical dimension of precedents operates along the hierarchy of courts where by higher courts bind lower courts. Thus, in the supreme court decision of **Paul Kawanga Semogerere and others V Attorney General**, the chief justice his lordship Benjamin Odok in his judgement held that in holding that the constitutional court or court of appeal was bound to follow the decisions of the supreme court. This confirms that the doctrine of precedent requires that lower courts follow the decisions of higher courts on the question of law.

In Uganda, the hierarchy of courts is established by **Article 129 of the constitution** in the order of the supreme court at the top, the court of appeal, the High Court and other subordinate courts as parliament may prescribe.

As regards the supreme court of Uganda, the horizontal application of the doctrine of precedent has now been constitutionalized in article 132(4) of the constitution which is to the effect that the supreme court may, while treating its own previous decisions as normally binding, depart from a previous decision when it appears to it right to do so, and all other courts shall be bound to follow the decisions of the supreme court on the question of law.

Merits of applying the doctrine of judicial precedents.

Judicial precedent is a decision made by courts which contains an underlying

principle that has a force of law which subsequently either binds or is persuasive to the future courts.

A precedent refers to a legal case that establishes a legal principle or rule which is being used by courts when deciding later cases with similar issues and facts.



The merits of applying the doctrine of judicial precedent include but not limited to the following

1. The doctrine of precedent provides some degree of certainty upon which individuals can rely when conducting their affairs. It's also a basis for orderly development of legal rules.
2. It also maintains uniformity in law and makes ruling of cases predictable. It does this by making sure that one court is bound by decisions of another in similar cases. Judgement in such a case would therefore remain uniform.
3. Judicial precedent offers the legal system access to consistency and predictability. The goal of the justice system should be to create a level of legal fairness throughout society. It provides the guarantor that every case will be treated and decided in a manner that is similar to past decisions.
4. It also offers the judicial system a certain measure of flexibility. The judicial precedent may create a standard that applies to similar cases and situations, but it is not a binding result. Higher courts do mandate the lower ones to follow the rules to the letter, but they can reserve the right to change their mind when an appeal occurs or issues of the society change. Judges may not write the law, but it's their job to interpret them as accurately as possible in every situation.
5. There is always the potential in place to set a new precedent. If a legal case is being heard for the first time in history, then whatever the outcome will set a judicial precedent for any upcoming issues that have similar circumstances.
6. Judicial precedent helps the court system to save time on future ruling. When the legal system has already provided an answer for similar situations, then the past rulings can become the foundation of the current decision that is necessary for case resolution.
7. The doctrine of precedent controls and avoids unnecessary litigation. Noticeably if courts were not bound by the previous decisions of the superior courts or their own decisions, there would be no finality in the law since the discontented litigant would keep suing or appealing until granted desirable judgement. This would lead to infinity since no one would be willing to lose the case.
8. The structure of judicial precedent works to prevent mistakes from occurring. When there is an unusual ruling as described in the point, the general

population understands that such an outcome is a mistake made by the system.
This provides consistency that everyone should follow.

9. It prevents imposition of personal decisions
10. The doctrine fills the gap in the absence of statutory law. New situations arise all of the time in society and they are not always covered in the statutory rules.



11. Judicial precedent reduces the likelihood of a successful appeal. When a judge follows the existing judicial precedent, then it gives the outcome of the case a stronger foundation for future appeals as well. Because the ruling given follows the same thought process of previous cases with similar circumstances.

Disadvantages or demerits of judicial precedent.

1. Judicial precedent adds multiple layers of complexity to the legal system.
2. People may not agree on what the judicial precedent actually is in a case. Even when a judicial precedent set a clear line on the expectations involved in a case for future consideration, there is no guarantee that another judge will see the law in the same light. There can be differing opinions on what the actual purpose of the ruling happens to be thus creating a measure of uncertainty that can never be resolved until the next ruling is issued.
3. Every case must face uncertainty until the final ruling is made. There are some judges who are more than willing to depart from a precedent because they wish to do what is right for the individuals involved in the case they are hearing.
4. Judicial precedent create rigidity in systems that sometimes need flexibility. The rules which are created from judicial precedent can remain in place for a significant amount of time. These rules always apply even they are outdated. Many judges will not make any changes to the perspective of the law until a case comes through which requires such action. Some changes require a case to come to a higher court appeal.
5. It forces the justice system to look backward instead of looking toward the future. A judicial precedent should always be looking backwards for it to create a standard in the first place.
6. This process can introduce unnecessary restrictions into the law. Judges can rule on specific cases in ways that a legislative body would never anticipate. If such a situation occurs then the process of judicial precedent can introduce unnecessary restrictions into the law.
7. Judicial precedent can create more applicable decisions for a case than is necessary. In cases where there are too many precedents available to consider, it can cause confusion when attorneys from both sides potentially offer a precedent from case law that justifies their position to court. It would then be

up to the judge to determine which side has firmer ground to stand on when making their arguments in an adversarial system.

8. Some judges might look for reasons why the judicial precedent shouldn't be followed

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There are times when judges get frustrated with the circumstances in society or the legal system in general that they look for ways to get around the judicial precedent that is in place.

9. Outside rules can change how the doctrine of judicial precedent applies. Since the Human rights Act of 1998, the doctrine of judicial precedent has seen significant weakening because of the way that principles and rules must apply. They must be read in such a way that they are compatible with whatever rights are contained in the European Convention of 1951.

In conclusion, the presence of judicial precedent makes it easier for courts to make decisions when the case before them is a reflection of previously decided cases.

QUESTION THREE

Discuss the major textual and non-textual aids to statutory interpretation, explaining how they are applied by the courts in construction and interpretation of statutes. 25 marks

SOLUTIONS

Aids to statutory interpretation.

The aids to statutory interpretation are divided into two and these include **Intrinsic materials and extrinsic materials.**

Intrinsic (Internal) Aids to statutory interpretation

These include in addition to authorized text of a statute, those parts of a piece of legislation that do not form part of the text such as short title, preamble, notes, section headings and schedules.

Aids found in all Acts.

a. Long title

It became established in the 19th Century that the long title could be considered as an aid to interpretation. The long title should be read as part of the context “as the planet of all the guides to the general objectives of the statute”.

b. Preamble

When there is a preamble it is generally in its recitals that the mischief to be removed remedied and the scope of the Act described. It is therefore clearly permissible to have recourse to it as an aid to construing the provisions.

c. Short title

The short title is commonly used in all Acts today and constitute part of our statutes.

d. Headings and side notes

Headings and side notes may be considered as part of the context of the statute.



e. Punctuations

These are now major commonly used but they so common in older statutes. In **DPP Vs Schildkamp**, court held that punctuation could be used as aids, in case of ambiguity as could the long title of the Act, headings and side notes. And in **Hanlow Vs Law Society**,

it was held that to ignore punctuation disregards the reality that literate people such as parliamentary draftsman, do punctuate what they write.

f. Schedules

These are always at the back of the statute in most cases explaining the nature of a document to be used in court, procedure and sometimes explaining the monetary value of a fine or cost e.g each currency point is equivalent to UGX. 20,000/=

Extrinsic (External) aids to statutory interpretation

Extrinsic materials. These are anything outside the body of legislation. They include any additional materials included in the authorized text of an Act for example

- Reports of Royal Commissions, Law Reform Commissions etc
- Reports of joint or select committees made during passage of the legislation
- Treaties or other international agreements mentioned in the Act
- Explanatory memoranda
- The text of parliament debates

The external or extrinsic aids include the following

1. Interpretation Act

This is an explanatory Act of the meaning of particular words that are so important in a statute. It can also explain the meaning of a word in a statute for example, He includes She, singular includes plural, person includes corporations, writing include or may mean any other way of producing visible form.

2. Text books and eminent writers on law

These can be cited as authoritative statements of the law of their time and therefore if the present law is shown to have changed, the reputation of the author and the date of the book are important. For example, the Halsburrys Laws of England are not statute but are highly respected as authorities in legislation.

In **R Vs Shivpuri**, the court acknowledged academic arguments as an aid to interpretation.

3. Dictionaries

Notably legal dictionaries of the time will be used to find out the meaning of a word in an Act. The most notable are the law dictionaries e.g Black's law dictionary,

Osborne concise dictionary etc.

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4. Treaties

Reports of law Reform bodies such as law commission and advisory committees which lead to passing of the Act can be used to discover the reform, which the statute intended to make.

5. White papers

Ocassionally, reference can be made to the discussion documents produced by the government even before the bill has been drafted.

6. Historical settings

A judge may consider the historical settings of the provision that is being interpreted.

7. Practice

The practice followed in the past may be a guide to interpretation. For example, the practice of eminent conveyancers where the technical meaning of a word or phrase used in the conveyancing as in issue.

QUESTION FOUR

The public perception of lawyers in Uganda is that lawyers are elitist, greedy and not projustice. In your view, what can lawyers do so as to improve on the image of the legal profession in Uganda? 25 marks

SOLUTION

THE LEGAL PROFESSION IN UGANDA

The legal profession is „a vocation that is based on expertise in the law and in its application.“ Those who pursue these „vocations“ collectively form a body of individuals who are qualified to practice law in particular jurisdictions.

Justice Remmy Kasule in Raymond Otucu v. Otwii Tom and others (HCT-02-029-2007)

stated at page 6 that, “The legal profession, more than any other profession, enjoins its members to exhibit the best proficiency of expertise when handling and pursuing instructions of their clients or the state at large.” **Justice Stephan Musota in Paul Mugoya**

v. Attorney General (Misc. Application No. 364 of 2015) stated at page 7 that, “.... the

Advocates Act Cap. 267 is one of the laws that regulates the legal profession...
..... and
matters relating to the legal profession in Uganda.”

The legal profession is divided into two broad areas: (1) The Bench and, (2) The Bar. THE BENCH

This is composed of judicial officers who are regulated by the Uganda Judicial

Code of Conduct, and the **Judicial Service Act Cap.14. Article 126(1) of the constitution** creates the stem of judicial power in Uganda by providing that, „judicial power is derived from the people and to be exercised by the courts established under the constitution.....“ Under **Article 257(b) of the constitution**, a “court” is one established by or under the courts of judicature.



Under **Article 151 of the constitution**, „a judicial officer“ means, (a) judge or any person who presides over court, (b) the chief registrar of court and, (3) such other person holding any office connected to court.

Under **Article 129 of the constitution**, the different courts of Uganda are listed starting

from the Magistrates Court grade 1 to the Supreme court of Uganda. It is therefore clear that these courts make up the judiciary and every person who works for these courts is taken to be an employee of the judiciary.

REGULATION OF JUDICIAL CONDUCT

Judicial officers are regulated by the Uganda Judicial Code of Conduct which provides for the principles that every judicial officer must abide by in discharge of their duties. Therefore, it should be noted that every judicial officer has a duty to exercise high levels of professional ethics while carrying out his/her judicial duties. Thus, in an Indian case of **Saad Salami v. Chief Justice, High Court Sindh**, the court defined “**Judicial Ethics**” as, „Unimpeachable character, high integrity and transparency in actions coupled with nobility and dignity.”

The principles governing judicial conduct as per the Judicial Code of Conduct are

listed below;

Independence

This principle requires that, a judicial officer should uphold and exemplify the independence of the judiciary in its individual and institutional aspects. A judicial officer shall reject any attempt, arising from outside the proper judicial process to influence the decision in any matter before the judicial officer for a judicial decision. Thus, in the case of **Julia Ssebutinde v. Attorney General, Hon. Justice Lillian Tibatemwa** stated that, „the complete liberty of the judicial officer is to independently and impartially decide cases that come before the court....”

Impartiality

This principle provides that, the essence of the judicial function and its applicability is not only to make a decision but also the process by which the decision is made. A judicial officer is required to perform his or her judicial duty without favour, bias or prejudice. **Justice should not only be done but it should also be seen to be done.** Therefore, Justice Lillian Tibatemwa in *Julia Ssebutinde*’s case(supra) was of the view that, “the complete liberty of the judicial officer is to impartially and independently decide cases that come

before the court...”

Integrity

This is central to the proper discharge of the judicial office. The behavior and conduct of a judicial officer must re-affirm to the people“ s faith in the integrity of the judiciary. A



judicial officer shall respect and uphold the laws of the country. He/she must exhibit and promote high standards of judicial and personal integrity.

Thus, in **Justice Okum Wengi v. Attorney General**, it was stated that, “integrity of

judicial officers is central since it re-affirms the people” s faith with the judicial officers.

Propriety

This principle requires that, propriety and the appearance of propriety are essential to the performance of all the activities of a judicial officer. A judicial officer shall avoid impropriety and the appearance of impropriety in all judicial and personal activities. He or she must conduct himself or herself in a manner consistent with the dignity of the judicial officer.

For example, in the case of **Justice Okum Wengi v. Attorney General**, were the petitioner,

a judicial officer was suspended regarding the allegations of judicial impropriety, corruption, and fraudulent perversion of justice. The court dismissed the petitioner” s application on grounds that his conduct as a judicial officer was improper.

Equality

This principle requires that, all persons are entitled to equal protection of the law. A judicial officer shall accord equal treatment to all persons who appear in court, without distinction on unjust discrimination based on the grounds of sex, colour, race, religion, age e.t.c. **The Constitution under Article 21** provides for equality and freedom from discrimination.

Competence and diligence

This principle requires that, competence and diligence are pre-requisites to the performance of the judicial officer. A judicial officer shall give judicial duty precedence over all other activities.

Forms of judicial misconduct

1. Using the judge” s office to obtain special treatment from friends or relatives; accepting bribes, gifts, or other personal favors.
2. Having improper discussions with parties or counsel for one side in a case.
3. Violating the rules of procedure or rules of evidence.
4. Acting outside the jurisdiction of the court.
5. Delay delivery of rulings.
6. Hiding files in chambers.

7. Corruption.
8. Coming late to court.
9. Treating litigants or lawyers in a demonstrably hostile manner.



THE BAR

The bar is made up of “Barristers” and “Solicitors”. The bar is mainly composed of “Lawyers” or “Litigants” and not judicial officers simply because judicial officers belong to the Bench.

The bar is headed by the Attorney General by virtue of Article 119(3) of the Constitution of Uganda. Second to the Attorney General is the Solicitor General, who is then followed by the Director of Public Prosecutions (DPP). The DPP is then followed by Advocates with Special Standing (Senior Counsel, Commissioner of oaths) and lastly the Advocates “**Advocate**” is defined under **Section 1 of the Advocates Act** to mean, any person whose name is duly entered upon the roll. Under **Section 7 of the Advocates Act**, the roll of advocates is to be done by the registrar. **Section 16 of the Advocates Act** provides for an Advocate to be an “officer of court.”

PROCEDURE FOR BECOMING AN ADVOCATE IN UGANDA

Do some Research

ADVOCATES PROFESSIONAL CONDUCT

The Advocates (Professional Conduct) Regulations provide for the conduct advocates should comply to while carrying out their duties as advocates. However, **Section 17 of the Advocates Act** empowers courts to deal with Advocates who violate the rules of ethics. Section 18 of the Advocates Act provides for the establishment of the Disciplinary Committee of the Law Council, to deal with complaints originating from the misconduct of advocates.

Therefore, all advocates are deemed to comply to the code of conduct set under the Advocates (Professional Conduct) Regulations. Among the regulations under the Advocates (Professional Conduct) Regulations include.

- 1. Regulation against conflict of interest or Personal involvement is the client’s case.**

Regulation 9 of the Advocates (Professional Conduct) Regulations restricts any advocate from appearing before any court or Tribunal in any matter in which he or she has reason to believe that he or she will be required as a witness. In the case of **Lwandasa v. Kyas Global Trading Company (2014)**, the transaction in dispute had been handled by **M/S Nziga and Co. Advocates**, now the defendant’s counsel, the sale agreement in dispute, the performance and execution was also overseen by the same law firm and the legal enforcement too. It was held that this was contrary to

Regulation 9 of the Advocates (Professional Conduct) Regulations since it resulted into conflict of interest.

2. Regulation against acting for a client without instructions.



Regulation 2(1) of the Advocates (Professional Conduct) Regulations provides that, “No advocate shall act for any person unless he or she has received instructions from that person.”

3. Regulation against prejudicing former clients

Regulation 4 of the Advocates (Professional Conduct) Regulations provides that, an advocate shall not accept instructions from any person in respect of a contentious or non- contentious matter if the matter involves a former client and the advocate is as a result of acting for the former client aware of any facts which may be prejudicial to the other client. In **Fred Nyeenya Mayambala v. Bisaso Nathan (2005)**, the defendant’s counsel had earlier represented the plaintiff under which the suit property was sought to be recovered by the plaintiff against the defendant. The court stated that, “...for a conflict of interest to arise in respect of a former client, there must be a nexus between the two disputes which prejudices the position of the former client.”

4. Regulation against using fiduciary relationship between the advocate and his/her clients for the advocate’s own advantage.

This is provided for under **Regulation 10 of the Advocates (Professional Conduct) Regulations**. Thus, in the case of **Uganda v. Ojangole (2014)**, were the lawyers of the employer to the accused had represented the accused. The lawyers had knowledge about the accused employer’s financial status and when a point of contention in court turned out to be against the employer, the advocate turned around and sought to act on behalf of the accused in a matter arising from the same transaction. The court held that it was forbidden for the advocate to take advantage of the fiduciary relationship with his client for gain.

5. Regulation against ‘Res sub judice’.

Regulation 20 of the Advocates (Professional Conduct) Regulations restricts an advocate from making announcements to newspapers or any other news media, including radio and television, concerning any pending, anticipated or current litigation in which he or she is not involved.

6. Regulation against coaching witnesses.

Regulation 18 of the Advocates (Professional Conduct) Regulations restricts an advocate from coaching a person whom he/she is expecting to be a witness in a matter the advocate is appearing before in any court.

7. Regulation against unlawful arrangement with public officers

Regulation 13 of the Advocates (Professional Conduct) Regulations restricts an advocate from entering into any arrangement with any person employed in the public service whereby that person is to secure either the acquittal of the advocate's client, the bringing of a lesser criminal charge against the advocate's client.



8. Regulation against presenting to court false affidavits

Regulation 15 of the Advocates (Professional Conduct) Regulations restricts any advocate from including in any affidavit any matter he or she knows that it is false. In *Re Ssesanga*, the petitioner was struck off the roll of advocates for swearing a false affidavit. The court held that his name could not be restored due to professional misconduct carried out by him as an officer of court.

9. Regulation against advertising

Regulation 25 of the Advocates (Professional Conduct) Regulations restricts an advocate from putting his or her name in the capacity of an advocate to be used in any commercial advertisement. However, this rule has got serious international challenges, for example in Kenya in the case of **Okenyo Omwansa v. Attorney General**, the Kenyan High Court accepted the advertising by advocates.

10. Regulation against champerty or contingent fees

Regulation 26 of the Advocates (Professional Conduct) Regulations restricts an advocate against entering in any arrangement for the sharing of a proportion of the proceeds of a judgement. In the case of **Shell (U) Ltd v. Rock Petroleum**, Justice Mulyangonja held that, champerty agreements, which are known among lay persons as buying into another's law suit or sharing in the spoils of litigation are illegal at common law.

11. Regulation against charging excessive fees.

Regulation 28(1) of the Advocates (Professional Conduct) Regulations provides that, no advocate shall charge a fee which is below the specified fee under the Advocates (Remuneration and Taxation of Cost) Rules.

DUTIES OF ADVOCATES TO THEIR CLIENTS

Section 1 of the Advocates Act defines a "client" as, „any person who as a principal, or on behalf of another, or personal representative, or in any capacity has power to retain or employ, an advocate.

1. Representing clients in court

It is a duty of a lawyer to represent his or her client in both civil and criminal proceedings. **Article 28(d) of the constitution** requires a person charged with a criminal offence to appear before the court in person or by a lawyer. Thus, in **Lobo v. Saleh Salim and others**, it was stated that, „...an advocate who appears for a client in a contested case is retained to advance or defend his client's case is retained to advance or defend his client's case as an officer of the court.

2. Providing legal advice to clients

Advocates have a duty to provide legal advice to clients. This advice has to be in position to help the client regarding the legal issue at hand. Thus, in **Kirima Estates(U) v. K.G**



Korde, where the advocate gave his client wrong advice about his financial standing thus led to losses after lending money. The court held that, the defendant had broken his duty to offer advice to the plaintiff as to the financial standing.

3. Duty to communicate to clients

Regulation 2(2) of the Advocates (Professional Conduct) Regulations provides that, an advocate shall not unreasonably delay the carrying out of instructions received from his/her clients and shall conduct business on behalf of clients with due diligence, including answering of correspondence dealing with the affairs of his or her clients.

4. Documentation management

Clients entrust advocates with important papers and documents and thus rely on their advocates to manage the client's legal files in a secure and orderly manner.

5. Avoiding representing clients in conflicts of interest

Regulation 9 of the Advocates (Professional Conduct) Regulations restricts advocates from appearing before any court or tribunal which the advocate has reason to believe that he/she will be required as a witness.

QUESTION FIVE

"The distinction between the literal Rule and the Golden Rule in statutory interpretation is negligible" per George Kasozi, a year one law student at IUIU, Faculty of law. With the aid of the relevant authorities, discuss the accuracy of the above statement. 25 marks

There are three main rules to interpret a statute, that is the Literal Rule, the Golden Rule and the Mischief Rule.

Literal Rule

The literal rule dictates that courts give effect to the ordinary and natural meaning of legislation. It prescribes the natural and the ordinary meaning given to words in statutes. It further uses the plain, ordinary, literal and grammatical meaning of the words in the statute.

Lord Reid in **Pinner Vs Everett**, defined the literal rule to mean the natural and ordinary

of the word or phrase in its context in the statute.

In **R Vs Judge of the City of London Court**, court noted the following

- a. *If the words of the Act are clear, then you must follow them even though they lead to a manifest absurdity*
- b. *The court has nothing to do with whether the legislature has committed an absurdity.*

In **Sussex Peerage case**, it was held that the only rule of the construction of Acts of

Parliament is that they should be construed according to the intent of the parliament which passed the Act. If the words of the statute are in themselves precise and unambiguous, then no more can be necessary than to expound those words in their



natural and ordinary sense. The words themselves alone do, in such a case test declare the intention of the law giver.

The Golden Rule

The Golden Rule is the extension of the Literal Rule and has both narrow and wider applications and is used where the literal rule creates absurdity. According to this rule, the courts were to interpret legislation in a manner which avoided obvious absurdities or inconsistencies like obvious printing mistakes or simple slips were set aside and the court read the statute or legislation as if those errors were not there. This rule is further used when the Literal Rule leads to a repugnant result.

The narrow application of the Golden Rule

This is used where the words are capable of having more than one meaning. In this case, the meaning which is least absurd should be used. This is evident in the case of *Adler Vs George*, where Adler was found guilty of the offence because, the word „in the vicinity of“ was interpreted to mean on or near the prohibited area or place.

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Under the Mischief Rule the court“ s role is to suppress the mischief of the Act is aimed at and advance the remedy.

Advantages of the mischief rule

- i. It closes loopholes
- ii. Allows the law to develop and adopt to changing needs. See the case of

Royal College of Nursing Vs DHSS

Problems with the mischief rule.

- i. Creates a crime after the event thus infringing on the rule of law. For example, the case of **Smith Vs Hughes**.



- ii. Gives judges a law-making role infringing on the separation of powers
- iii. Judges can bring their own views, sense of morality and prejudices to cases e.g. **Smith Vs Hughes, DPP Vs Bull.**

QUESTION SIX

Explain and discuss the following situations with regards to the professional conduct and ethics required by an advocate. 25 marks

- a) Advertising and touting

Regulation against advertising

Regulation 25 of the Advocates (Professional Conduct) Regulations restricts an advocate from putting his or her name in the capacity of an advocate to be used in any commercial advertisement. However, this rule has got serious international challenges, for example in Kenya in the case of **Okenyo Omwansa v. Attorney General**, the Kenyan High Court accepted the advertising by advocates.

- b) Diligent representation of clients

DUTIES OF ADVOCATES TO THEIR CLIENTS

Section 1 of the Advocates Act defines a “client” as, „any person who as a principal, or on behalf of another, or personal representative, or in any capacity has power to retain or employ, an advocate.

The advocate must exercise a great deal of diligence while representing the client and the following are the duties of the advocate to their clients.

1. Representing clients in court

It is a duty of a lawyer to represent his or her client in both civil and criminal proceedings. **Article 28(d) of the constitution** requires a person charged with a criminal offence to appear before the court in person or by a lawyer. Thus, in **Lobo v. Saleh Salim and others**, it was stated that, “...an advocate who appears for a client in a contested case is retained to advance or defend his client” s case is retained to advance or defend his client” s case as an officer of the court.

2. Providing legal advice to clients

Advocates have a duty to provide legal advice to clients. This advice has to be in position to help the client regarding the legal issue at hand. Thus, in **Kirima Estates(U) v. K.G Korde**, were the advocate gave his client wrong advice about his financial standing thus led to losses after lending money. The court held that, the defendant had broken his duty to offer advice to the plaintiff as to the financial standing.

3. Duty to communicate to clients

Regulation 2(2) of the Advocates (Professional Conduct) Regulations provides that, an advocate shall not unreasonably delay the carrying out of instructions received from



his/her clients and shall conduct business on behalf of clients with due diligence, including answering of correspondence dealing with the affairs of his or her clients.

4. Documentation management

Clients entrust advocates with important papers and documents and thus rely on their advocates to manage the client's legal files in a secure and orderly manner.

5. Avoiding representing clients in conflicts of interest

Regulation 9 of the Advocates (Professional Conduct) Regulations restricts advocates from appearing before any court or tribunal which the advocate has reason to believe that he/she will be required as a witness.

c) Accountability for monies to clients

d) Engaging in conduct unbecoming of an advocate

ADVOCATES PROFESSIONAL CONDUCT

The Advocates (Professional Conduct) Regulations provide for the conduct advocates should comply to while carrying out their duties as advocates. However, **Section 17 of the Advocates Act** empowers courts to deal with Advocates who violate the rules of ethics. Section 18 of the Advocates Act provides for the establishment of the Disciplinary Committee of the Law Council, to deal with complaints originating from the misconduct of advocates.

Therefore, all advocates are deemed to comply to the code of conduct set under the Advocates (Professional Conduct) Regulations. Among the regulations under the Advocates (Professional Conduct) Regulations include.

1. Regulation against conflict of interest or Personal involvement is the client's case.

Regulation 9 of the Advocates (Professional Conduct) Regulations restricts any advocate from appearing before any court or Tribunal in any matter in which he or she has reason to believe that he or she will be required as a witness. In the case of **Lwandasa v. Kyas Global Trading Company (2014)**, the transaction in dispute had been handled by **M/S Nziga and Co. Advocates**, now the defendant's counsel, the sale agreement in dispute, the performance and execution was also overseen by the same law firm and the legal enforcement too. It was held that this was contrary to Regulation 9 of the Advocates (Professional Conduct) Regulations since it resulted into conflict of interest.

2. Regulation against acting for a client without instructions.

Regulation 2(1) of the Advocates (Professional Conduct) Regulations provides that,

“No advocate shall act for any person unless he or she has received instructions from that person.”



3. Regulation against prejudicing former clients

Regulation 4 of the Advocates (Professional Conduct) Regulations provides that, an advocate shall not accept instructions from any person in respect of a contentious or non-contentious matter if the matter involves a former client and the advocate is as a result of acting for the former client aware of any facts which may be prejudicial to the other client. In **Fred Nyeenya Mayambala v. Bisaso Nathan (2005)**, the defendant's counsel had earlier represented the plaintiff under which the suit property was sought to be recovered by the plaintiff against the defendant. The court stated that, "...for a conflict of interest to arise in respect of a former client, there must be a nexus between the two disputes which prejudices the position of the former client."

4. Regulation against using fiduciary relationship between the advocate and his/her clients for the advocate's own advantage.

This is provided for under **Regulation 10 of the Advocates** (Professional Conduct) Regulations. Thus, in the case of **Uganda v. Ojangole (2014)**, were the lawyers of the employer to the accused had represented the accused. The lawyers had knowledge about the accused employer's financial status and when a point of contention in court turned out to be against the employer, the advocate turned around and sought to act on behalf of the accused in a matter arising from the same transaction. The court held that it was forbidden for the advocate to take advantage of the fiduciary relationship with his client for gain.

5. Regulation against 'Res sub judice'.

Regulation 20 of the Advocates (Professional Conduct) Regulations restricts an advocate from making announcements to newspapers or any other news media, including radio and television, concerning any pending, anticipated or current litigation in which he or she is not involved.

6. Regulation against coaching witnesses.

Regulation 18 of the Advocates (Professional Conduct) Regulations restricts an advocate from coaching a person whom he/she is expecting to be a witness in a matter the advocate is appearing before in any court.

7. Regulation against unlawful arrangement with public officers

Regulation 13 of the Advocates (Professional Conduct) Regulations restricts an advocate from entering into any arrangement with any person employed in the public service whereby that person is to secure either the acquittal of the advocate's client,

the bringing of a lesser criminal charge against the advocate's client.

8. Regulation against presenting to court false affidavits

Regulation 15 of the Advocates (Professional Conduct) Regulations restricts any advocate from including in any affidavit any matter he or she knows that it is false.
In Re



Ssesanga, the petitioner was struck off the roll of advocates for swearing a false affidavit. The court held that his name could not be restored due to professional misconduct carried out by him as an officer of court.

9. Regulation against advertising

Regulation 25 of the Advocates (Professional Conduct) Regulations restricts an advocate from putting his or her name in the capacity of an advocate to be used in any commercial advertisement. However, this rule has got serious international challenges, for example in Kenya in the case of **Okenyo Omwansa v. Attorney General**, the Kenyan High Court accepted the advertising by advocates.

10. Regulation against champerty or contingent fees

Regulation 26 of the Advocates (Professional Conduct) Regulations restricts an advocate against entering in any arrangement for the sharing of a proportion of the proceeds of a judgement. In the case of **Shell (U) Ltd v. Rock Petroleum**, Justice Mulyangonja held that, champerty agreements, which are known among lay persons as buying into another's law suit or sharing in the spoils of litigation are illegal at common law.

11. Regulation against charging excessive fees.

Regulation 28(1) of the Advocates (Professional Conduct) Regulations provides that, no advocate shall charge a fee which is below the specified fee under the Advocates (Remuneration and Taxation of Cost) Rules.

QUESTION SEVEN

Critically discuss the similarities and differences if any between the Literal Rule, Golden Rule and Mischief Rules in statutory interpretation. 25 marks

SOLUTIONS

There are three main rules to interpret a statute, that is the Literal Rule, the Golden Rule and the Mischief Rule.

Literal Rule

The literal rule dictates that courts give effect to the ordinary and natural meaning of legislation. It prescribes the natural and the ordinary meaning given to words in statutes. It further uses the plain, ordinary, literal and grammatical meaning of the words in the statute.

Lord Reid in **Pinner Vs Everett**, defined the literal rule to mean the natural and ordinary

of the word or phrase in its context in the statute.

In **R Vs Judge of the City of London Court**, court noted the following

c. If the words of the Act are clear, then you must follow them even though they

- lead to a manifest absurdity*
- d. *The court has nothing to do with whether the legislature has committed an absurdity.*



In *Sussex Peerage* case, it was held that the only rule of the construction of Acts of Parliament is that they should be construed according to the intent of the parliament which passed the Act. If the words of the statute are in themselves precise and unambiguous, then no more can be necessary than to expound those words in their natural and ordinary sense. The words themselves alone do, in such a case test declare the intention of the law giver.

The Golden Rule

The Golden Rule is the extension of the Literal Rule and has both narrow and wider applications and is used where the literal rule creates absurdity. According to this rule, the courts were to interpret legislation in a manner which avoided obvious absurdities or inconsistencies like obvious printing mistakes or simple slips were set aside and the court read the statute or legislation as if those errors were not there. This rule is further used when the Literal Rule leads to a repugnant result.

The narrow application of the Golden Rule

This is used where the words are capable of having more than one meaning. In this case, the meaning which is least absurd should be used. This is evident in the case of *Adler Vs George*, where Adler was found guilty of the offence because, the word „in the vicinity of“ was interpreted to mean on or near the prohibited area or place.

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- iv. Allows the law to develop and adopt to changing needs. See the case of Royal College of Nursing Vs DHSS

Problems with the mischief rule.

- iv. Creates a crime after the event thus infringing on the rule of law. For example, the case of **Smith Vs Hughes**.
- v. Gives judges a law-making role infringing on the separation of powers
- vi. Judges can bring their own views, sense of morality and prejudices to cases e.g. **Smith Vs Hughes, DPP Vs Bull**.

QUESTION EIGHT

Examine the primary and secondary sources in legal research? Discuss their authoritative use in litigation.

SOLUTION

Legal research is the way how lawyers and legal scholars look for information on matters regarding law.

Glanville Williams asserts that, "Lawyers do not know much more law than other people but they know better where to find it." Legal research is therefore the process of identifying and retrieving information necessary to support legal decisions.

Importance of legal research

Legal research is an important skill that every lawyer should have. Therefore, every lawyer should know how to find the law and the various sources of law he or she should look at.

- ✚ The main objective of legal research is the collection of authoritative relevant to a particular problem.
- ✚ We research because we want to acquire knowledge on a certain topic, students are required to study, analyse, critique and apply legal material hence necessary pursuit of knowledge.
- ✚ It helps advocates to prepare for their cases before courts. If the advocate is well prepared before a trial, he will destroy the legal opinions of the adverse party. This can be effected where thorough and appropriate legal research has been carried out.
- ✚ Legal research is a foundation for good legal advice. Law practitioners are consulted on giving advice for various disciplines. Therefore, the quality of their work has a vast impact on themselves and their clients.
- ✚ Helps one who consecutively carries it out to master it which is important to every lawyer so as to know where to find the law.

✚ Collection of authoritative material may be relevant to solve a legal problem.
Therefore, it's to this view that legal research is important and benefits the legal industry.



Sources of legal research

The sources of legal research are basically categorized under Primary and Secondary sources.

Primary sources include; Statutes and case law.

Secondary sources include; Textbooks, Journals, E-resources, Newspapers e.t.c

Primary sources

1. Case law

Laws in case materials are highly relevant in legal research because Uganda follows the Common law legal system. **Section 14(3) of the Judicature Act** provides for the application of common law and the doctrines of equity in Uganda. Therefore, it is important for a legal researcher to find decided cases in order to back up his/her legal research.

Where can one find case law?

Case law can be got from various reports or volumes of books such as;

- a) Weekly Law Reports
- b) All England Law Reports
- c) Law Times Reports
- d) Law Journal Reports
- e) East African Law Reports.

How to cite a case

Tom Ojienda and Katarina Juma in their book „Exodus of Law“ define a “Citation” as, a reference to a specific legal source such as a constitution, statute, reported case e.t.c.

Case name---Year---Report Volume---Reporter---Abbreviation---Page Number.

Components of case law;

- a) Name of the case; Find the name of the parties.
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- h) Decision of court.
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2. Statutes

Legal researchers can do their research basing on statutes. There are various ways this can be done;



- i. Chapter name; It is important to show the name and chapter of the statute.
- ii. Short title; defines the Act. iii. Commencement date; Date the statute came into force.
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- v. Arrangement of section; Table or summary of sections.
- vi. Marginal notes.
- vii. Schedule; attached at the end of the statute

SECONDARY SOURCE

Dissertations: Research papers made by students who are completing. i.e degree, masters e.t.c.

Textbooks: Authoritative books also help in legal research.

Internet Sources: These are the modern forms of legal research. However, some factors have to be considered when using internet sources;

- I. Authority should be analyzed.
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So among the internet databases used include; ULII, SAFLI, BALI e.t.c. Justice Odoki in the case of Paul Kawanga Ssemwogerere v. Attorney General stated that, “...with modern electronic systems of legal research, relevant knowledge and skill is essential in order to achieve successful results.”

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customary law. Section 15 of the Judicature Act provides for customary law to be observed by the High Court provided it is not repugnant to any laws and principles of natural justice.

Law dictionaries: These give different meanings to legal words and they are useful in

legal research. E.g Osborn’s Concise Law Dictionary, Black’s Law Dictionary e.t.c.

Journals: These are academic documents on several subjects of law and they can also be used as sources of information during the process of legal research.

CHALLENGES FACED WHEN CARRYING OUT LEGAL RESEARCH

1. Legal research is expensive. Some legal research materials are expensive i.e law books, subscription charges to online case data bases e.t.c

2. Law sources are scarce especially in developing countries of Africa.
3. Various statutes get amended thus making research work vague.
4. Legal Research consumes time, i.e preparing dissertations take months or even years



5. Plagiarism. This is the process of using someone else's work without permission or using someone else's work without acknowledging the author. This is the use of materials from unacknowledged sources or direct quotation of materials from documented reference without acknowledging that the words have been taken verbatim from those references

QUESTION NINE

Discuss the importance of legal research to a lawyer and how the research is conducted. 25 marks

SOLUTION

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industry.

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Steps taken in carrying out legal research

1. Purpose of Legal Research; One should establish the reason for carrying out legal research.
2. Identifying the sources of law; i.e case law or statutory law, ICT e.t.c.
3. Knowledge about the facts.
4. Analyzing the facts so as to determine the issues.
5. Legal problems to be determined; these arise from the facts and facts analysis and once established, a researcher can solve them.
6. Technique of note taking; i.e finding the law applicable.
7. Citation; This refers to the process of referencing to any legal source as authority for the conclusion of law cited in the text.
 - i. How to cite statutes; One should show the Section, subsection, name of statute and chapter of the statute. **Section 15 of the Interpretation Act** provides that any statutory instrument may be cited by reference to its short title or by reference to the number of the notice in the gazette.
 - ii. How to cite a text book; ***Author Names---Book name---Year of publication---Edition-Page.***
 - iii. How to cite a Newspaper article; ***Name of Newspaper---Date---Name of Article-- -Author--Page.***
 - iv. How to cite a Journal Article; ***Author---Title---Journal Title Abbreviation--- Initial page number---Year of publication.***
 - v. How to cite electronic case law; ***Case name---Name of database---Court--- Document number.***
 - vi. How to cite internet sources; Author or owner of website---***Title--- Pinpoint reference--URL---Date material was retrieved.***
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QUESTION TEN

You” re a legal assistant with Lukwago & Co. Advocates. A client by names of

Charles Serwadda walks into your chambers and informs you that he has been awarded with a Uganda Certificate of Education and wants practice law in Uganda. With the help of relevant authorities, draft a legal memorandum addressed to senior counsel, advising your client on the requirements of becoming an advocate in Uganda. 25 marks



SOLUTION

Under the **Advocates Act, Cap 267)** an advocate is termed as any person whose name is duly entered upon the roll. In order for Charles Serwadda to become an advocate he must have and go through the following qualifications and procedures respectively:

1. Charles Serwadda must be a holder of a degree in law in a University in Uganda or any recognized University such as Universities of Nairobi, Dar el Salam and Zambia. Universities in Uganda recognized are under the **Universities and other Tertiary Institutions Act** such as MUK, UCU, IUIU, KIU etc.
2. Charles Serwadda must attend a Post Graduate Bar Course and be awarded a Diploma in Legal Practice on Successful completion.
3. Charles Serwadda must then apply for a Certificate of Eligibility for enrollment from the Law Council with an affidavit verifying the facts in the application under **r.4 of the Advocates (Enrollment and Certification) regulations** and testimonials of two Advocates who have been on the roll for at least 3 years.
4. And if successful in his application he must advertise his application in the Gazette under **r.6 of the Advocates (Enrollment and Certification) regulations.**
5. Charles Serwadda must appear before the Law Council if directed and then wait to be informed by the secretary as regards its decision to his application under **r.7 of the Advocates (Enrollment and Certification) regulations**
6. Charles Serwadda must then apply if successful to the Chief Justice for enrollment by petition accompanied by a certificate of eligibility for enrollment by the Law Council and other qualifications under **r.8 of the Advocates (Enrollment and Certification) regulations**
7. If successful Serwadda's application for enrollment shall be advertised in the Gazette under **r.9 of the Advocates (Enrollment and Certification) regulations.**
8. The Chief justice shall then if successful issue him a certificate of Enrollment under **r.11 of the Advocates (Enrollment and Certification) regulations.**
9. Charles Serwadda can then apply for a practicing certificate to the Uganda Law Society to become an advocate of the High Court under **r.12 of the Advocates**

(Enrollment and Certification) regulations and if successful he will be issued with a practicing certificate.

QUESTION ELEVEN

The system of judicial precedent is based on a Latin maxim shortened as stare decisis which literary means “stand by what has been decided and do not unsettle the established.” In light of the statement,



- a) **Describe the various ways how courts have avoided following the past decision. 15 marks**
- b) **What are the merits and demerits of applying the doctrine of judicial precedent? 10 marks**

SOLUTION

Merits of applying the doctrine of judicial precedents.

Judicial precedent is a decision made by courts which contains an underlying principle that has a force of law which subsequently either binds or is persuasive to the future courts.

A precedent refers to a legal case that establishes a legal principle or rule which is being used by courts when deciding later cases with similar issues and facts.

The merits of applying the doctrine of judicial precedent include but not limited to the following

- 12. The doctrine of precedent provides some degree of certainty upon which individuals can rely when conducting their affairs. It's also a basis for orderly development of legal rules.
- 13. It also maintains uniformity in law and makes ruling of cases predictable. It does this by making sure that one court is bound by decisions of another in similar cases. Judgement in such a case would therefore remain uniform.
- 14. Judicial precedent offers the legal system access to consistency and predictability. The goal of the justice system should be to create a level of legal fairness throughout society. It provides the guarantor that every case will be treated and decided in a manner that is similar to past decisions.
- 15. It also offers the judicial system a certain measure of flexibility. The judicial precedent may create a standard that applies to similar cases and situations, but it is not a binding result. Higher courts do mandate the lower ones to follow the rules to the letter, but they can reserve the right to change their mind when an appeal occurs or issues of the society change. Judges may not write the law, but it's their job to interpret them as accurately as possible in every situation.
- 16. There is always the potential in place to set a new precedent. If a legal case is being heard for the first time in history, then whatever the outcome will set a judicial precedent for any upcoming issues that have similar circumstances.

17. Judicial precedent helps the court system to save time on future ruling.
When the legal system has already provided an answer for similar situations,
then the past



rulings can become the foundation of the current decision that is necessary for case resolution.

18. The doctrine of precedent controls and avoids unnecessary litigation. Noticeably if courts were not bound by the previous decisions of the superior courts or their own decisions, there would be no finality in the law since the discontented litigant would keep suing or appealing until granted desirable judgement. This would lead to infinity since no one would be willing to lose the case.
19. The structure of judicial precedent works to prevent mistakes from occurring. When there is an unusual ruling as described in the point, the general population understands that such an outcome is a mistake made by the system. This provides consistency that every one should follow.
20. It prevents imposition of personal decisions
21. The doctrine fills the gap in the absence of statutory law. New situations arise all of the time in society and they are not always covered in the statutory rules.
22. Judicial precedent reduces the likelihood of a successful appeal. When a judge follows the existing judicial precedent, then it gives the outcome of the case a stronger foundation for future appeals as well. Because the ruling given follows the same thought process of previous cases with similar circumstances.

Disadvantages or demerits of judicial precedent.

10. Judicial precedent adds multiple layers of complexity to the legal system.
11. People may not agree on what the judicial precedent actually is in a case. Even when a judicial precedent set a clear line on the expectations involved in a case for future consideration, there is no guarantee that another judge will see the law in the same light. There can be differing opinions on what the actual purpose of the ruling happens to be thus creating a measure of uncertainty that can never be resolved until the next ruling is issued.
12. Every case must face uncertainty until the final ruling is made. There are some judges who are more than willing to depart from a precedent because they wish to do what is right for the individuals involved in the case they are hearing.
13. Judicial precedent create rigidity in systems that sometimes need flexibility. The

rules which are created from judicial precedent can remain in place for a significant amount of time. These rules always apply even they are outdated. Many judges will not make any changes to the perspective of the law until a case comes through which requires such action. Some changes require a case to come to a higher court appeal.



14. It forces the justice system to look backward instead of looking toward the future. A judicial precedent should always be looking backwards for it to create a standard in the first place.
15. This process can introduce unnecessary restrictions into the law. Judges can rule on specific cases in ways that a legislative body would never anticipate. If such a situation occurs then the process of judicial precedent can introduce unnecessary restrictions into the law.
16. Judicial precedent can create more applicable decisions for a case than is necessary. In cases where there are too many precedents available to consider, it can cause confusion when attorneys from both sides potentially offer a precedent from case law that justifies their position to court. It would then be up to the judge to determine which side has firmer ground to stand on when making their arguments in an adversarial system.
17. Some judges might look for reasons why the judicial precedent shouldn't be followed

There are times when judges get frustrated with the circumstances in society or the legal system in general that they look for ways to get around the judicial precedent that is in place.

18. Outside rules can change how the doctrine of judicial precedent applies. Since the Human rights Act of 1998, the doctrine of judicial precedent has seen significant weakening because of the way that principles and rules must apply. They must be read in such a way that they are compatible with whatever rights are contained in the European Convention of 1951.

In conclusion, the presence of judicial precedent makes it easier for courts to make decisions when the case before them is a reflection of previously decided cases.

QUESTION TWEEVE

Discuss the different methods of legal reasoning. 25 marks

Analogy reasoning. Is the reasoning by comparison or by examples. Meaning comparing two cases by saying that the case of so and so have the same products as the case of so and so.

Inductive reasoning. Is the process of reasoning from particular rule or situation to a general one. It involves an analysis of different situations before formulating a general principal.

Deductive reasoning. This is a reasoning from general rule to specific situations that is to say it involves the application of a ready-made principal to individual cases.



QUESTION THIRTEEN

A young man finds you on the streets of Kampala and asks you to guide him on how he can become a lawyer and practice law in Uganda. Advise this young man. 25 marks

SOLUTIONS

Under the **Advocates Act, Cap 267)** an advocate is termed as any person whose name is duly entered upon the roll. In order for Charles Serwadda to become an advocate he must have and go through the following qualifications and procedures respectively:

Let's say the young man is called Charles

1. Charles Serwadda must be a holder of a degree in law in a University in Uganda or any recognized University such as Universities of Nairobi, Dar el Salam and Zambia. Universities in Uganda recognized are under the **Universities and other Tertiary Institutions Act** such as MUK, UCU, IUIU, KIU etc.
2. Charles Serwadda must attend a Post Graduate Bar Course and be awarded a Diploma in Legal Practice on Successful completion.
3. Charles Serwadda must then apply for a Certificate of Eligibility for enrollment from the Law Council with an affidavit verifying the facts in the application under **r.4 of the Advocates (Enrollment and Certification) regulations** and testimonials of two Advocates who have been on the roll for at least 3 years.
4. And if successful in his application he must advertise his application in the Gazette under **r.6 of the Advocates (Enrollment and Certification) regulations.**
5. Charles Serwadda must appear before the Law Council if directed and then wait to be informed by the secretary as regards its decision to his application under **r.7 of the Advocates (Enrollment and Certification) regulations**
6. Charles Serwadda must then apply if successful to the Chief Justice for enrollment by petition accompanied by a certificate of eligibility for enrollment by the Law Council and other qualifications under **r.8 of the Advocates (Enrollment and Certification) regulations**
7. If successful Serwadda's application for enrollment shall be advertised in the Gazette under **r.9 of the Advocates (Enrollment and Certification)**

regulations.

8. The Chief justice shall then if successful issue him a certificate of Enrollment under

r.11 of the Advocates (Enrollment and Certification) regulations.

9. Charles Serwadda can then apply for a practicing certificate to the Uganda Law Society to become an advocate of the High Court under **r.12 of the Advocates (Enrollment and Certification) regulations** and if successful he will be issued with a practicing certificate.



LEGAL REASONING

Legal Reasoning refers to a process of legally thinking about a legal problem and then make particular arguments based on the law to persuade the court.

Black's Law Dictionary defines reasoning as „a faculty of the mind which distinguishes

truth from falsehood, good from evil and which enables the possessor to deduce inferences from facts or from propositions.

Legal reasoning is premised on the following principles and these include; Material facts, Issues, Rule, Analysis/Resolution and Conclusion.

Material facts

As defined by the **Black's Law Dictionary** to refer to the state of affairs which are crucial to the interpretation of a phenomenon or a subject matter, or to the determination of an issue at hand.

These are the facts that fit the elements of the rule.

Issues

As defined in the **Black's Law Dictionary**, Issues refer to a point of law with controversy or a matter to be decided in court. It can also mean what specifically is being debated, the "issue" is the legal issue.

Rules

It refers to the established standard, guide, regulation or a principle set up by authority, prescribes or directing action or forbearance as per the **Black's Law Dictionary**. Lawyers must state the right law the same way it is provided for under a statute; lawyers must cite the right law (state the rule) and where it emanates from (cite the rule). What legal rule governs this issue in question?

Analysis

It refers to taking a single item and figuring out reasons for differences in the numbers and importance. It is important that after identifying the material facts, lawyers must connect the material facts with the law.

Conclusion

It literally connotes the end, the termination or the act of finishing. After the lawyer/judge has applied the rule to the facts, what is the outcome? Examine whether all "elements" of the rule are met and then come to a legal conclusion and or the available remedies to the plaintiff.

In order to provide a substantive and persuasive arguments, lawyers and judges use different forms and components of legal reasoning and they include the following;



Linguistic Reasoning

Linguistic reasoning is where arguments are made basing on the law hence lawyers base their arguments on the wording of the provisions of a statute. Lawyers must apply the legal provisions the way they are provided for under a given statute, so that they make arguments which are within the confines of the law. For example, in the case of **Theodore Ssekikubo and others v. Attorney General**, the Constitutional Court was faced with the interpretation of the word “leave” under **Article 127(1)(g) of the Constitution**. The court interpreted the word „leave“ to mean „go way, stop living in, and stop working for.“ However, on appeal to the

Supreme Court, the court declined to follow the Constitutional Court“ s definition of the word „leave“ . The court stated that;

“We think that majority of the justices of the Constitutional Court must have in law taken the word „leave“ out of the context it was used in Article 127(1)(g), and try to interpret it in isolation of the rest of the words used in Article 127(1)(g).”

Therefore, it is important to establish that linguistic reasoning is generally based on applying the rules and legal provisions the way they are provided for under a given law or statute.

In another case, **Attorney General v. Major General David Tinyefuza**, the learned Justice

Kanyehamba stated that;

“I have found it necessary to reproduce Article 137 of the constitution in a whole and refer to the Judicature statute, rules and directives because of the tendency of the legal profession amongst lawyers to select one or two provisions or sections of a law or clauses of the constitution and then reach to legal conclusions upon them.... which is not in any way productive.”

Therefore, the best lawyer is the one who provides and interprets the provisions of the law the way they were stated in the statute.

Logic Reasoning

Logic reasoning refers to the internal consistency and equal application of the law. It refers to more than formal logic, formal logic is the science of deriving a conclusion from stated premises; it is not directly concerned with either true or false. A person can obtain a false but logically correct conclusion from a false premise. Therefore, logic prefers to life correct application of precedents and equal application of law.

According to prof. **George Wilhelm Hegel**; logic refers to **a system of dialectics such as**

dialectical metaphysics which is a development of the principle that thought and being constitute a single and active unity.



Judicial Discretion;

Legal reasoning also involves exercise of judicial discretion and the discretion must be in the conformity with the law. This requires the knowledge of the law, and then applying such knowledge to the facts of a case in order to arrive to legal conclusions. Lawyers must identify the problem giving rise to a case so that they are in position to identify the laws applicable. Lawyers then have to evaluate the problem basing on the evidence available and then arrive to conclusions after careful observation and investigation.

In the case of **Sam Kuteesa and others v. Attorney General**, the court quoted “*judicial*

discretion as the exercise by the court when court considers all what before it and reaches a decision without taking into account any reason which is not a legal one....., the courts act according to the rules of reason, justice and law within the limits of legislation, judicial discretion is not a private opinion, humor, vague or fanciful considerations”

In the case of **R v. Board of Education**, the court was of the view that, “*The courts act according to the rules of reason, justice and law within the limits of legislation. Judicial discretion is not a private opinion, humor, vague or fanciful considerations.”*

Lawyers must understand the legal problem very well before making conclusions so that they do not arrive at wrong conclusions. In the case of **Ssekikubo and others v. Attorney General**, the Constitutional Court erred in law and arrived at a wrong conclusion when the Justices interpreted the word “leave” to mean „to go away, stop living in and, stop working for“ . The Supreme court held to the contrary that the constitutional court faulted in its reasoning while interpreting the word „leave“ .

Therefore, judicial discretion must be based on the law and not on religious or biblical rules.

This was elaborated in the case of **Julius Lwabinumi v. Hope Bahimbisomwe**, the

Supreme Court stated that,

“The statements and reasoning of the justices of the Court of Appeal are with due respect problematic. First, Uganda is a Secular state which is governed by canon law based on the constitution, statutory law, common law and doctrines of equity. Given the secular nature, it was not proper for the learned justices to base judicial decisions on religious marital vows”.

Analogical Reasoning.

Reasoning by analogy is made basing on the fact that, a case should be handled in

a similar way another case with similar facts and ratio decidendi was handled by court. For example, if case (X) was decided in a certain way, and the facts and ratio of case (X) are similar with the facts of case (Y) at hand, case (Y) has to be decided the same way case (x) was decided by court.



In the Supreme Court Election Petition of *Amama Mbabazi v. Yoweri Kaguta Museveni and another* (Presidential Election Petition No.1 of 2016), it was observed by court that the facts and issues of Amama Mbabazi's case were practically the same as the facts and issues in the previous case of **Dr Kiiza Besigye v. Yoweri Museveni and anor** (Presidential Election Petition No.1 of 2006), where the court held that although there were irregularities in the electoral process, such irregularities could not substantially render the elections null and void. Therefore, the court in Amama Mbabazi's case

followed the reasoning in Dr Kiiza Besigye's case and it held that, *"even though there were irregularities in the electoral process, such irregularities could not substantially render the elections null and void"*. (It is clear that the court in Amama's case reasoned by analogy when it followed the decision in Besigye case.

This kind of reasoning resonates with the **doctrine of Precedent** and the principle of **stare decisis** where the case at hand is presided over the same way the previous case was decided so as long as the facts and circumstances of the two cases are the same.

There are ways in which the lawyer can do away with this kind of reasoning that is to say; by providing contrasting argument that distinguishes the facts and issues of the two cases at hand.

Empirical Reasoning

Reasoning by Empirical grounds are made basing on the evidence at hand while arriving at legal conclusions. A lawyer must base his/her legal arguments on the available evidence so that he or she makes a valid legal argument. **Section 4 of the Evidence Act** emphasizes that, *"evidence may be given in any suit or proceeding on the existence or*

non-existence of every fact". This can be illustrated basing on criminal cases. The court

relied on the evidence presented by the prosecution that the eye witnesses saw the accused raping the victim in the case of **Uganda v. Kyamusungu**. The court thus relied on such evidence to convict the accused of rape.

Reasoning basing on Syllogism

Here the lawyers/judges base their reasoning on social environment rather than legal rules. It is the flow of an argument starting from the general to specific that is to say something general from which a conclusion about something more specific may be drawn hence deductive reasoning is applied to arrive at a conclusion based on assumptions which are asserted as true.

In syllogism, inferences are drawn from the law as the major premise, then facts as the minor premise and conclusion which is a result of application of the law to the facts. This involves statement of law which could be major premises such as the statutes and case law, human rights standards and international law and statements of fact which is minor that forms the judge's starting point when writing a judgement.



Inductive reasoning is the opposite of deductive reasoning and induction is a process of reasoning from particular cases to whole group of cases, from specific instances to general rules. The inductive method is also known as historical, or empirical or a posteriori method. This kind of reasoning is persuasive in nature and helps the lawyer to draw the attention of the court on a broader perspective of the circumstances of the instant case.

In conclusion, Legal reasoning is frequently found in interpreting and applying the law or legal norms in a particular case. An acceptable form of legal reasoning must fulfill the requirements of both formal legal rules and moral considerations. Legal reasoning must also be persuasive, consistent, and coherent to make a rationally constructed and integrated decision. Thus, the integrity of legal principles is central to a coherent set of legal reasoning. Among the various forms of legal reasoning, the analogy is the most commonly used one applied in judicial decisions and statutory interpretation. Analogy plays a great role in legal reasoning to make the decision coherent and consistent. This way, analogical reasoning promotes legal certainty and predictability in judicial decisions. On the other hand, deductive reasoning is relevant only in established statutory or case law, rules, and principles.

CONCEPTS THAT WILL ALWAYS APPEAR IN CASE LAW

Ratio decidendi. Is that part of a case which carries authority and which may be used by lower courts as their authority in disposing of a case that is before them provided that the material facts of the two cases are almost similar. It is formulated from the material facts of the case and the decision of the court. (Abstraction) is the capability to link the material facts and the court's decision.

Obiter Dicta. Is a minor principle that is formulated by the court from hypothetical (thoughtful) facts for purposes of clarifying a certain point. It is said "by the way" and it has no direct link with the case at hand.

An Obiter is not binding however its weight depends on the eminence of the court and the status of the judge who formulated it. Basing on that an Obiter, in future may be used as a principle. There are no authorities used to formulate it that is why it cannot be binding.

Material facts. These are facts on which the decision of the court will base. However,

there is an ongoing debate as to what are material facts of the case. It's important to

note that there is no hard and fast rule on how to select the material facts of the case, that being the case, *material facts are those which the court declares to be so*. Facts that describe how the dispute came to be and the court will be basing on those facts and making a decision.

Miscellaneous



Legal reasoning

Legal reasoning is about various factors and has various components attached to it. This concept is of thinking which the learners and researchers should use in order to reach a legal conclusion and make further decisions. When we talk about co relation in between law and society, we understand the social control perspective, it happens because law enables to provide solution to conflicts that may arise by setting precedents in past, present and future.

It has been very long history that has given us the opportunity to formulate logical reasoning in law. Legal procedure, history and its binding ability can resolve conflicts in the society and further direct current activity while maintaining continuity with the past, and to control the future by laying down procedures, approaches and theories.

Decision are guided and followed by a logical reasoning which takes into account the past decisions and statutes, the present position of the parties to the cases, and its own impact on future activity. The ability of open interpretation with boundaries help the learner and researches to reach a legal conclusion.

Objectives

To introduce the concept of legal reasoning and its importance. To understand the basic components in legal reasoning.

To understand the role of logical reasoning in law

To know about the various types of legal reasoning methods in terms of kinds of arguments.

To focus on deductive method of research.

To understand the Steps of deductive method

To understand the merits and de merits of deductive method

Basic Components in Legal Reasoning

The four pillars of legal reasoning are "Legal Process Logic", "Justice", "Experience" and "Policies".

Legal process logic lays on the principle of consistency and equal application of law. The science that involves forming legal conclusion can never be as simple as right and wrong it inherits the correct application of precedents and equal

application of law.

The principle justice is the sword that slays and ensure the to do right between the parties. The concept of justice revolves around the philosophical thought of justice based on evidence.



Experience teaches the most integral component of legal reasoning. The practice of law is about experience and through experience we understand the logic. It is the tool that empowers the user to understand come to legal conclusion of legal judgments.

The term policy is used to describe the process of approaching a conflict as well as a solution. It is the give and take of the scientific attempt to see into future and understand the consequences and impacts. It is emphasizing on the individual to put aside die current interests of the parties and to keep in mind how this decision would affect other persons in future.

Logical Reasoning Types and Principles

When we look at all the four components, the logical thinking is the core which creates the concept of legal reasoning similar to scientific generalizations are based on logical explanations. Every science is based on the principles of logic or reason. Science involves die rules of reasoning or use of arguments. Arguments are made on the basis of connection, relationship, association, property, common variable or attribute between things and activities mentioned in the argument.

Inductive Method

Scientific method of research emphasizes and works on the principle of induction. It is the process which involves the reasoning from particular cases to whole group of cases, from specific instances of the concerning law. It can also be called the historical or empirical or a posteriori method. It can be also said that it is a practical ideology to legal work, study and research problems. It is that bridge which covers the gap in between theoretical and practice.

It ignites the chain reaction between the causes and further establishes the relation in between them. It is a collective of instances and facts also known as raw data of experience, that is the reason it is called as empirical. The data is can be of various field and background such as statistics, historical records, etc. as long as it related.

Deductive Method

From the title we understand that this method is about deduction of conclusions, assumptions and both of them collectively. It is process that gives reasoning and

its principle varies from general to particular hence makes the base broader. It provides the premise because its vast reasoning. It has other components such as analytical, abstract and a priori method. What the abstract method indicates is the ideology and the approach for the study. It is the rational approach qualifies it as scientific. It is basically



a rational approach in accordance with the tenets of deductive logic. It is the logic that uses a general statement as the basis of argument.

If we focus on syllogism of this method, its major components consist a major premise, a minor premise, and a conclusion.

A major premise is the principle that states a general rule. During the legal research this premise state generally a statement of law. A minor premise the part which makes a factual statement of the facts of the research. During the legal research and arguments, this premise states the statement of fact. The role of conclusion is to make a connect the major and minor premise through a statement and hence the relation establish further provides a general rule that applies to the facts and during the legal research it can be said that it is the Step of instating the law to the facts.

Example: to qualify as a victim of rape under criminal law there must be:

Sexual intercourse with a woman

'The intercourse must be without her will" (Major premise; states a rule of law).

Here, the woman had consensual sex. (Minor premise; makes a statement of fact.)

'Therefore, the plaintiff cannot be a "victim" of rap under criminal law. (Conclusion; correctly applies the law to the facts.)

When the truth of the premise follows:

In order for a syllogism to be valid, it must be logically impossible for its premises to be true and its conclusion to be false. In other words, a syllogism is valid if, given the truth of its premises, the conclusion "follows" logically such that it, too, must be true. An argument is not valid simply because its premises and conclusion are all true.

Example: All teachers are human. Some human are excellent racers. Therefore, some teachers are excellent racers.

During the research the study of the causal factors of the delinquencies have some general anticipatory idea which enables the researcher guides them to observe on the specific facts which is relevant to their inquiry. It is not necessary that the

implications are clear then in those cases the observation helps them user to formulate certain single propositions leading to clearing out irrelevance. That is, they deduce from die complexities of observed behaviour certain single ideas. In other words, they use a



process of reasoning about the whole observed situations in order to arrive at a particular idea. This process of reasoning is called deduction or deductive reasoning.

The following example can be cited for the deductive reasoning:

Lombroso, an Italian, observed peculiar physical features among the criminals and by using the logical deductive thinking formulated the following propositions by taking his observations into consideration:

Criminals are by birth a distinct type of persons

They can be recognized by stigma or anomalies such as a symmetrical cranium, long lower jaw, flattened nose, scanty beard and low sensitivity to pains

These physical anomalies identify the personality which is predisposed criminal behavior. Such persons cannot refrain from committing crime unless the circumstances of life are generally favoured.

Deduction is logical reasoning and if we start with good premises, deduction can serve scientific research in three ways:

Deduction enables to detect the questionable assumptions logically and it is involved in what is believed to be the truth and it multiplies the number of available hypothesis by formulating the possible alternatives.

The logical deduction of its consequences makes clear the meaning of any hypothesis. The process of rigorous deduction is an aid in the attempt to steer clear of irrelevancies and thus the right principle is found.

Steps in The Deductive Method

Step 1

In this Step the problem is explored and it preliminary to any investigation. It states the existence of a definite problem in the mind of the researcher. The problem should hold significance in the factual world.

Step 2

In this Step the hypothesis from the assumption which are made are selected which can lead to the final conclusion from the research. It is important the selection and the relevant assumptions are taken into account from the observation. This Step bridges the gap of assumptions and facts. The final results from this Step is; conjuncture, a hunch, of the possible connection between two phenomena.

Step 3

Theoretical development of the formulated hypothesis has been taken together with the implications and should be carefully studied to further result into a theory. We understand the consequences and implications are deduced from the logical reasoning.

The explanandum and explanans are the two parts of this Step.

The explanandum is the part which enables the user to reach to conclusion of the deductive argument of the issue at hand which may be pertaining of anything. It might be singular or multiple which can always vary.

The explanans (premise) explain the explanandum (conclusion). The explanandum is deduced from the explanans. The deductive explanation has a valid argument because it takes the form of conditional argument, affirming the antecedent which is a valid form of inference.

Step 4

The final Step of this process is the verification of theories.

Merits And Demerits Of Deductive Method

Merits

Powerful: "Deductive explanation is very powerful because it makes use of a valid form of deductive argument where the explanandum must be true if the explanans are true." Simple method: "From a few basic facts of human nature, a number of inferences can be drawn by logical reasoning."

Substitute for experimentation: "It is not possible for the investigator to conduct controlled experiments with the legal phenomena in a laboratory. He can, therefore, fall back upon deductive reasoning."

Actual and exact: "The deductive method lends for the generalizations which are accurate and exact."

Demerits

1. The diversity and complexity of brain poses the trouble for part of the population whose logic and reasoning might not be very strong hence not everyone can be successful in using this method. This is further growing with

time and even after experience it may not be definite that the conclusion reached is applicable in the scenario.



2. It is also interpreted that there is a danger of building inapplicable models. If the user confines to only abstraction. Then this model may have the elegance and be logically sound but still can be distinct from the reality.
3. It is important to understand the conditions because deductive reasoning are valid only under right assumed conditions. It is important for assumptions to be valid.
4. Despite the vast base and assumptions this method might not be applicable to all the scenarios and cases. Hence it may be applicable to some but not all the studies.

MORE REVISION QUESTIONS

QUESTION

Explain the following

- a) Mention the bases of legal reasoning
- b) Distinguish between facts and material facts
- c) Explain fallacies in reasoning
- d) Mention three advantages of legal reasoning
- e) With relevant examples, define Syllogism

QUESTION

Discuss what you understand by the term deed and how it defers from other documents at common law.

QUESTION

Discuss the intrinsic and extrinsic aids to statutory interpretation, explaining how they are applied by the courts in construction and interpretation of statutes. 25 marks

QUESTION

Elaborate the importance of legal research in legal education and practice. **QUESTION**

The legal profession would be cumbersome without use of authorities and rules that guide lawyers in case citation. Discuss the principle sources of authorities and five aspects that make case citation important in law. 25 marks

QUESTION

Discuss the internal and external aids to statutory interpretation, explaining how they are applied by the courts in construction and interpretation of statutes. 25 marks



QUESTION

Legal citation is one of the major methods lawyers use to refer to cases at different instances. Critically discuss legal citation and the characteristics of a law report. 25 marks

QUESTION

The public perception of lawyers in Uganda is that lawyers are elitists, greedy and not pro-justice, and in most cases go to court unprepared and seeking adjournments.

- a) Given the public perception of lawyers being liars, do you think they have any important role in society? 9 marks

SOLUTION

- b) What can lawyers do to improve the image of the legal profession in Uganda? 8 marks
- c) A lawyer should read as widely as possible and should not be limited to legal sources only. What is the importance of such sources and their legal force as authorities? 8 marks

QUESTION

- a) What is precedent and the difference between stare decisis and obiter dictum? 12 marks
- b) How is a decision distinguishable from another and why? 5 marks
- c) Discuss the difference if any between per incuriam and per curiam decisions of court. 8 marks

QUESTION

- a) What is plagiarism? 5 marks
- b) What drives both young and established scholars to engage in plagiarism? 10 marks
- c) What legal measures can be adopted for it to be cured in IUIU. 10 marks